

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DEQUAN PATTERSON,

SUMMONS

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE
SERGEANT ROBERT COX, Tax No. 948821, NYPD
POLICE OFFICER DENNIS DIAZ, Tax No. 966541,
and NYPD POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN,

Plaintiff designates Kings
County as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: Brooklyn, New York
October 26, 2023

Yours, etc.



The Law Office of Karene Brown, PLLC
Attorneys for Plaintiff
44 Court Street, Suite 1217
Brooklyn, New York 11201
(929) 669-7775

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE SERGEANT ROBERT COX, Tax No. 948821, NYPD 67th Precinct;

NYSCEF DOC. NO. 1

RECEIVED NYSCEF: 10/30/2023

2820 Snyder Avenue, Brooklyn, NY 11226

NYPD POLICE OFFICER DENNIS DIAZ, Tax No. 966541, NYPD 67th Precinct;
2820 Snyder Avenue, Brooklyn, NY 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
DEQUAN PATTERSON,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

JURY TRIAL DEMANDED

THE CITY OF NEW YORK, NYPD POLICE
SERGEANT ROBERT COX, Tax No. 948821, NYPD
POLICE OFFICER DENNIS DIAZ, Tax No. 966541,
and NYPD POLICE OFFICERS JOHN DOES NUMBERS
ONE THROUGH TEN,

Defendants.

----- X

Plaintiff DEQUAN PATTERSON, by his attorney, The Law Office of Karene Brown, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 18, 2022, at approximately 12:55 a.m., Plaintiff, Dequan Patterson, while lawfully in the vicinity of 1828 Nostrand Avenue, County of Kings, New York, was subject to an unlawful arrest, detention, and search of his person and search of a vehicle by Defendant Police Officers. Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and his constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, searched Plaintiff's person and unlawfully searched the car Plaintiff was in, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

COMPLIANCE WITH N.Y. GEN. MUN. LAW REQUIREMENTS

2. Plaintiff in furtherance of his causes of action brought pursuant to New York State law, filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.
3. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on September 14, 2023.

4. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

PARTIES

5. Plaintiff, Dequan Patterson, at all times material herein is a resident of the state of New York.
6. Defendant, City of New York, ("City") is a municipal corporation duly organized and existing under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant, City, assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
7. New York City Police Sergeant Robert Cox, Tax No. 948821, is and was at all times relevant herein an Officer with the New York City Police Department.
8. New York City Police Sergeant Robert Cox, Tax No. 948821, is being sued in their individual and official capacity.
9. At all times relevant herein, New York City Police Sergeant Robert Cox, Tax No. 948821, was assigned to the 67th Police Precinct of the NYPD.
10. New York City Police Officer Dennis Diaz, Tax No. 966541, is and was at all times relevant herein an Officer with the New York City Police Department.
11. New York City Police Officer Dennis Diaz, Tax No. 966541, is being sued in their individual and official capacity.
12. At all times relevant herein, New York City Police Officer Dennis Diaz, Tax No. 966541, was assigned to the 67th Police Precinct of the NYPD.
13. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
14. Police Officers John Does #1-10 are being sued in their individual and official capacities.
15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On June 18, 2022, at approximately 12:55 a.m., Plaintiff was present in the vicinity of 1828 Nostrand Avenue, County of Kings, New York, when the Defendant Police Officers unlawfully arrested Plaintiff without probable cause or legal justification.
19. Prior to the arrest and earlier in the day, Plaintiff arrived at the barbershop located at 1828 Nostrand Avenue to get a haircut. While inside the barbershop, Plaintiff saw his friend Kwame Richardson. Kwame Richardson was with Joey Osteen.
20. After Plaintiff got his haircut, he left the barbershop with Kwame Richardson and Joey Osteen to get food and alcohol.
21. Later in the night, Plaintiff, Kwame Richardson, and Joey Osteen returned to the barbershop and met with David Cedor. They were all seated in David Cedor's car when an unmarked car approached them.
22. When the Defendant Police Officers approached the car, David Cedor was sitting in the driver's seat. Joey Osteen was sitting in the front passenger seat. Kwame Richardson was seated in the backseat behind Mr. Cedor. Plaintiff was seated in the backseat behind Mr. Osteen.
23. The Defendant Police Officers approached the car after receiving an anonymous 911 call where an unknown male stated that a white, heavy-set male, about 30 years old, wearing a burgundy sweatsuit, has a gun on him in a bookbag outside of the barbershop located at 1828 Nostrand Avenue.
24. At all times, Plaintiff is black. At all times, Plaintiff is slim built. At all times, Plaintiff had on a white tank top with black jeans. At no time, Plaintiff ever had a bookbag.
25. After Defendant Police Officers approached the car, they asked everyone to step out of the car. Defendant Police Officers then unlawfully searched the backpack inside the car and found a gun.
26. At no point, were the Defendant Police Officers ever given consent to search the car. At no point during the radio run or through the Intergraph Computer Aided Dispatch System ("ICAD") report, were the Defendant Police Officers ever given a description of the car, the model of the car, the make of the car, or the color of the car. In fact, both the radio run and the ICAD report failed to mention any car.
27. Defendant Police Officers then unlawfully arrested Plaintiff by restraining him with metal handcuffs; the plaintiff was not Mirandized by Defendant Police Officers. Plaintiff was then subjected to an illegal search.
28. Defendant Police Officers unlawfully arrested Plaintiff despite him not matching the description of the individual who the anonymous caller claimed to have possessed the gun. Defendant Police Officers unlawfully arrested Plaintiff, even though, they found passport pictures of Joey Osteen, inside of the backpack with the gun.

Significantly, Joey Osteen was the only person who matched the description given by the anonymous caller. Defendant Police Officers unlawfully arrested Plaintiff despite finding credit cards with Kwame Richardson's name on it in the backpack where they found the gun.

29. On or about June 18, 2022, the Plaintiff was arraigned in criminal court, charged with crimes he did not commit. The Judge set \$100,000 bail on Plaintiff. Plaintiff could not afford his bail, so he was sent to Rikers Island.
30. While Plaintiff was in custody, the Defendant Police Officers provided the Kings County District Attorney's Office and the Grand Jury with the false, misleading and/or incomplete information that Plaintiff committed a crime whereby falsely securing an indictment.
31. Specifically, the Defendant Police Officers falsely stated to the Kings County District Attorney's Office and falsely stated to the Grand Jury that Plaintiff was in possession of a gun. Defendant Police Officers failed to provide exculpatory information to the Grand Jury by willfully failing to inform the Grand Jurors that the anonymous caller specifically identified Joey Osteen, a white male, as the individual who possessed the gun.
32. As a result of the false charges made against him, Plaintiff was incarcerated on Rikers Island for 95 days. Plaintiff appeared before the Supreme Court judge on multiple occasions to defend the false charges levied against him. Plaintiff was eventually released from Rikers Island after 95 days because of a speedy trial violation.
33. While incarcerated on Rikers Island, Plaintiff witnessed fighting, slashings, and Plaintiff was pepper sprayed, even though, he suffers from asthma.
34. On or about April 18, 2023, the Office of Chief Medical Examiner ("OCME") provided the DNA report, which excluded Plaintiff's DNA from being present on the gun.
35. On or about April 20, 2023, a suppression hearing was held where the Defendants Police Officers testified. On May 4, 2023, Judge Cesare suppressed the gun finding that the search of the backpack was unlawful.
36. On June 12, 2023, the case was dismissed and sealed.
37. The unlawful arrest and the 95 days of being incarcerated on Rikers Island by the individually named defendants caused Plaintiff to sustain physical, psychological, and emotional trauma. Plaintiff suffered and continues to suffer emotional distress, fear, embarrassment, humiliation, shock, discomfort, loss of liberty, wages and financial losses, pain, and damages.

FIRST CAUSE OF ACTION

Unlawful Stop, Question, and Search

38. The Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
39. The illegal approach, stop, and grab employed by Defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

40. The conduct of Defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.
41. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.
42. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
43. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
44. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SECOND CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

45. The Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
46. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.
47. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

False Imprisonment

48. The Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
49. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
50. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.
51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
53. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

54. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
55. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff.
56. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.
57. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.
58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
60. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

61. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
62. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.
63. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

SIXTH CAUSE OF ACTION
Failure to Intervene

64. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
65. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.
66. Defendants failed to intervene to prevent the unlawful conduct described herein.
67. As a result of the foregoing, Plaintiff suffered damages, his liberty was restricted, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.
68. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.
69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
71. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

72. The Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
73. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.
74. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.
75. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.
76. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

77. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.
78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
79. The City, as the employer of the Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
80. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: emotional, and psychological injuries.

EIGHTH CAUSE OF ACTION
Malicious Prosecution

81. The Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
82. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.
83. Defendants commenced and continued a criminal proceeding against Plaintiff.
84. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.
85. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned date.

NINTH CAUSE OF ACTION
Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

86. The Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
87. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.
88. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
89. The Defendant Officers, while in uniform, unlawfully seized, and searched the car Plaintiff was in, before detaining plaintiff and further causing his detention for approximately ninety-five (95) days in total.
90. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

TENTH CAUSE OF ACTION**Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights**

91. The Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
92. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
93. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
94. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.
95. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.
96. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

ELEVENTH CAUSE OF ACTION**City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights**

97. The Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
98. Defendant Police Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.
99. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.
100. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
101. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
102. The Defendant Officers, while in uniform, unlawfully seized, and searched the car Plaintiff was in, before detaining plaintiff and further causing his detention for approximately ninety-five (95) days in total.

103. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

TWELFTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

104. The Plaintiff repeats, reiterates, and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
105. Defendant Officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.
106. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.
107. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
108. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
109. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.
110. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.
111. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

THIRTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

112. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
113. Such conduct breached the protections guaranteed to Plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:
- i. freedom from unreasonable search and seizure of his person and property;
 - ii. freedom from arrest without probable cause;
 - iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
 - iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and

v. freedom from deprivation of liberty without due process of law.

114. As a direct and proximate result of Defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.
115. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, and emotional injuries, as well as a deprivation of liberty.
116. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

117. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff DEQUAN PATTERSON demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*

Dated: New York, New York
October 26, 2023



KARENE BROWN, ESQ
The Law Office of Karene Brown, PLLC
Attorneys for Plaintiff
44 Court Street, Suite 1217
Brooklyn, New York 11201
(929) 669-7775

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE SERGEANT ROBERT COX, Tax No. 948821, NYPD 67th Precinct;
2820 Snyder Avenue, Brooklyn, NY 11226

NYPD POLICE OFFICER DENNIS DIAZ, Tax No. 966541, NYPD 67th Precinct;
2820 Snyder Avenue, Brooklyn, NY 11226

ATTORNEY'S VERIFICATION

KARENE BROWN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am of the owner of THE LAW OFFICE OF KARENE BROWN, PLLC, the attorney for the Plaintiff.

I have read the annexed VERIFIED COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true.

My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: Brooklyn, New York
October 26, 2023


KARENE BROWN, ESQ